



Republic of the Philippines
DEPARTMENT OF LABOR AND EMPLOYMENT
Intramuros, Manila



Department Order No. 256
Series of 2026

ALBERTO C. TORRES
Secretary

Revised Implementing Rules and Regulations of Republic Act No. 10395, Otherwise Known as An Act Strengthening Tripartism, amending for the purpose Article 275 of the Presidential Decree No. 442, otherwise known as the Labor Code of the Philippines, as Amended, or the Tripartism Law

Pursuant to the rule-making authority granted to the Secretary of Labor and Employment under Section 2 of Republic Act No. 10395 and Article 5 of the Labor Code, as amended, the following rules and regulations are hereby issued to set standards and procedures for the establishment, structure, composition, and operation of the National Tripartite Industrial Peace Council (NTIPC), and regional, local, and industry tripartite councils.

RULE I – PRELIMINARY PROVISIONS

Section 1. Title. – These Rules shall be known as the revised Implementing Rules and Regulations of Republic Act No. 10395.

Section 2. Coverage. – These Rules shall cover all Tripartite Industrial Peace Councils (TIPCs) and Industry Tripartite Councils (ITCs) created at the national and regional levels, including those created within special economic zones.

Section 3. Definition of Terms

- a. **“Coordinating Council”** refers to a special body and/or committee created by law or regulations for the purpose of providing direction, fostering collaboration, and ensuring coordination in the implementation of specific programs, projects and policies across various agencies or sectors.
- b. **“Standing Committee”** refers to the committee within the National Tripartite Industrial Peace Council (NTIPC) constituted by the latter to carry out its monitoring, oversight and policy review functions.
- c. **“Industry Tripartite Council (ITC)”** refers to the tripartite council at the national, regional or local level to serve as a continuing forum for tripartite advisement and consultation on labor and employment matters specific to a particular industry.
- d. **“Key Employment Generators (KEGs)”** refer to major industry groups with significant potential to generate employment, as determined by the competent agencies.
- e. **“Most representative organization”** refers to the organization of employers and/or workers of substantial and verifiable membership base, duly registered with the DOLE, the Securities and Exchange Commission (SEC) or other government regulatory body, and which have actively engaged in tripartite or other multi-stakeholders consultations relating to labor and employment at the national industry, regional or local levels.

- f. **“Regional Tripartite Monitoring Body (RTMB)”** refers to a tripartite body at the regional level composed of the Regional Director as Chairperson and an equal number of representatives from the workers’ and employers’ sectors, tasked to monitor the application of international labor standards, and to verify and process allegations, complaints or other incidents of violence, harassment and violations of the rights of workers and employers that may pose a threat to their individual and collective rights and to industrial peace.
- g. **“Subcommittee”** refers to a body created within or separate from a tripartite council, composed of representatives from the government, labor and employer sectors, tasked to focus on specific thematic areas, policy concerns or regional or industry issues.
- h. **“Tripartite Conference”** refers to an assembly or meeting that may be called by the President of the Philippines or the Secretary of Labor and Employment to deliberate and formulate collective recommendations on urgent or emerging labor and employment issues that affect the tripartite sectors.
- i. **“Tripartite Industrial Peace Council (TIPC)”** refers to the tripartite council at the national or regional level to serve as a continuing forum for tripartite advisement and consultation on labor, employment, and socio-economic matters. A regional TIPC may have tripartite subcommittees at the provincial, municipal, and city levels, including those in economic zones.
- j. **“Tripartism”** refers to an institutionalized form of social dialogue involving the Government, employers’ organizations and workers’ organizations, involving the process of negotiation, consultation, or exchange of information between and among representatives of governments, employers, and workers’ organizations on economic and social issues of common interest.
- k. **“Social Dialogue”** refers to all types of negotiation, consultation and exchange of information between or among representatives of governments, employers and workers on issues of common interest relating to economic and social policy.

RULE II – DECLARATION OF POLICY

Section 1. The State shall promote and institutionalize tripartism as a State policy in labor-management relations by providing a continuing forum for tripartite advisement and consultation in the implementation and monitoring of international labor standards; furthering the exercise of freedom of association and the rights to organize and collectively bargain; encouraging reforms in government; empowering workers’ and employers’ organizations and enhancing their respective rights; promoting shared responsibility between them; attaining industrial peace; and improving productivity. Thus, workers and employers shall, as far as practicable, be represented in decision, consultative and policy-making processes of the government.

RULE III – NATIONAL TRIPARTITE INDUSTRIAL PEACE COUNCIL

Section 1. National Tripartite Industrial Peace Council.

- a. **Purpose.** – The National Tripartite Industrial Peace Council (NTIPC) shall serve as the main consultative body for tripartite advisement and consultation among the labor, employer, and government sectors in the formulation, review and implementation of labor, employment and social policies at the national level.

- b. **Composition.** – The NTIPC shall be composed of representatives of labor, employer, and government sectors with the Secretary of Labor and Employment as Chairperson and an Undersecretary as alternate Chairperson. The labor and employer sectors shall be composed of 20 representatives each, to be designated by the President at regular intervals for a term of three (3) years unless sooner replaced or recalled by the nominating organization.

To ensure effective participation, full consultation and informed decisions and recommendations, government agencies whose presence is necessary shall be invited through their Heads of Offices or their authorize representatives who should not be lower than Director IV level for effective participation and decision-making.

- c. **Functions.** – The NTIPC shall have the following functions:

1. Review existing labor, economic and social policies, and evaluate local and international developments affecting them;
2. Advise the Secretary of Labor and Employment in the formulation or implementation of policies and legislations affecting labor and employment, especially those related to strengthening freedom of association and the rights to organize and collective bargaining, as means to advance participatory labor governance and industrial peace;
3. Formulate, for submission to the President or Congress, tripartite views, recommendations and proposals on labor, economic and social concerns, including the presentation of tripartite positions on relevant bills pending in Congress and measures involving appropriations necessary for the implementation of labor and employment policies and programs;
4. Monitor the full implementation and compliance by concerned sectors with the provisions of all international conventions and declarations, national policies, laws and regulations, or other instruments such as codes of conduct, social accords and the like;
5. Act as the High-Level Tripartite Monitoring Body on the application of international labor standards, particularly International Labor Organization (ILO) Convention No. 87 (Freedom of Association and Protection of the Right to Organize) to facilitate innovative feasible solutions to persistent concerns highlighted by the various committees of the ILO and other major international bodies;
6. Oversee and monitor the operations and functions of national ITCs, and provide policy guidance to regional ITCs through the concerned regional TIPC, to ensure consistency with national tripartite priorities and the mandates of these Rules;
7. Serve as a communication channel and mechanism for undertaking joint programs among government, workers, employers, and their organizations toward enhancing labor-management relations, including initiatives that capacitate workers to effectively exercise their rights to organize and bargain, and support employers in strengthening compliance, cooperation, and good-faith engagement in collective bargaining processes;
8. Coordinate with and render technical assistance or advice to the appropriate agencies or councils on matters relating to labor and employment;

9. Support DOLE agencies in the resolution of industrial disputes;
10. Participate in national, regional or industry-specific tripartite conferences which the President or the Secretary of Labor and Employment may call from time to time;
11. Create standing committees or special committees, as may be necessary, to assist in the performance of its functions and the implementation, coordination, and monitoring of its priority programs and undertakings;
12. Adopt its own program of activities and rules consistent with development objectives; and
13. Perform such other functions as may be required by the Secretary of Labor and Employment or by law;

Section 2. Standing Committees of the NTIPC. – The NTIPC shall have the following Standing Committees:

- a. **Tripartite Executive Committee (TEC)** shall serve as the coordinating and review body of the NTIPC responsible to undertake policy formulation or technical analysis on how a program may be properly implemented, with the objective of advising or assisting the NTIPC. The TEC is likewise authorized to act on behalf of the NTIPC on day-to-day operational matters and urgent concerns requiring immediate tripartite guidance or action, without prejudice to subsequent confirmation or guidance from the NTIPC. It shall be composed of not more than five (5) representatives each from the labor and employer sectors selected from the members of the NTIPC.
- b. **Committee on Labor and Employment Plan** shall monitor and review the implementation of the labor and employment plan, which serves as a strategic framework to promote employment opportunities, enhance worker protection, and foster industrial peace. It shall be composed of not more than five (5) representatives each from the labor and employer sectors selected from the members of the NTIPC.
- c. **Committee on Trade Matters** shall provide inputs on trade-related policies and negotiation strategies and assess all free trade agreements (FTAs) pursued by the government in terms of their impact on employment, workers' rights, and occupational safety and health. It shall be composed of not more than three (3) representatives each from the labor and employer sectors, selected from among the members of the NTIPC. Appropriate government agencies handling trade and investment matters shall be invited to participate in the discussions, as may be necessary.
- d. **Committee on Freedom of Association and Case Monitoring** shall monitor and review the implementation of the Roadmap on Freedom of Association in the private and public sectors, in accordance with the recommendations of the Committee on the Application of Standards and the Committee of Experts on the Application of Conventions and Recommendations. It shall likewise review, evaluate, and recommend appropriate actions on reports received from other monitoring bodies, and monitor and report progress on alleged violations of freedom of association, including those reported to international bodies. The Committee shall be composed of not more than six (6) representatives each from the labor and employer sectors, to be selected from among the members of the NTIPC.

The existence, functions, and composition of standing committees are subject to periodic review of the NTIPC and may be modified or revoked as deemed necessary. The NTIPC may

also establish new standing or ad hoc committees, including those that may represent sectors or occupational categories, as needed to address emerging issues and ensure effective governance.

RULE IV – SUBCOMMITTEES OF THE NTIPC

Section 1. Regional Tripartite Industrial Peace Council.

- a. **Creation.** – Regional Tripartite Industrial Peace Councils (RTIPCs) are hereby recognized as having been established in every region in the country pursuant to the authority of the Secretary of Labor and Employment. As a subcommittee of the NTIPC, the RTIPC shall ensure representation of workers and employers and shall serve as a forum for tripartite consultation at the local level.

The RTIPC may also create its subcommittees, including those that may represent sectors or occupational categories, as it deems necessary.

- b. **Composition.** – The RTIPC shall be composed of representatives from government and not more than fifteen (15) representatives each from the most representative labor and employer organizations in the region.

The RTIPC shall be chaired by the Regional Director or in his absence, by the Assistant Regional Director. Provincial/city/municipal TIPC's shall be chaired by the Assistant Regional Director or by the head of the Provincial/Field Office.

Each representative shall be designated as a member of the RTIPC by the Secretary of Labor and Employment, or as a member of the local TIPC by the Regional Director, as the case may be, upon nomination by the concerned sector and in accordance with Rule VI of these Rules. Each representative shall have a term of three (3) years, unless sooner replaced or recalled by the nominating organization.

The Regional Director may invite representatives of other government agencies and non-government organizations as it deems necessary.

- c. **Functions.** The RTIPC shall support the NTIPC in the performance of its functions, and for this purpose:
1. Review the effects of national labor, economic, and social policies and international developments as these affect regional and local conditions;
 2. Advise the Secretary of Labor and Employment in the implementation of policies and legislations affecting labor and employments at the regional and local levels;
 3. Formulate regional tripartite views, recommendations, and proposals on labor, economic, and social concerns;
 4. Serve as a communication channel and a mechanism for undertaking joint programs among government, workers, employers, and their organizations toward enhancing labor-management relations;
 5. Support DOLE and its attached agencies in the resolution of industrial disputes;
 6. Participate in national, regional or industry-specific tripartite conferences which the President or the Secretary of Labor and Employment may call from time to time;

7. Adopt its own program of activities and rules consistent with development objectives; and
8. Perform such other functions as may be required by the Secretary of Labor and Employment or by law.

Section 2. Regional Tripartite Monitoring Body – A Regional Tripartite Monitoring Body (RTMB) on the application and implementation of international labor standards, particularly ILO Convention No. 87 (on Freedom of Association and Protection of the Right to Organize), shall be constituted as a permanent subcommittee of the RTIPC.

It shall be composed of three (3) representatives each from the worker and employer sectors who are RTIPC members, with the Regional Director serving as Chairperson. Consistent with Executive Order No. 23, series of 2023, constituting the Inter-Agency Committee for the Protection of the Freedom of Association and Right to Organize of Workers, the government representatives of the RTMB shall come from the following concerned government agencies at the regional level:

1. Department of Justice (DOJ)
2. Department of the Interior and Local Government (DILG)
3. Department of National Defense (DND), including the Armed Forces of the Philippines (AFP)
4. Department of Trade and Industry (DTI)
5. National Security Council (NSC)
6. Philippine National Police (PNP)
7. Civil Service Commission (CSC)
8. Commission on Human Rights (CHR)

Specifically the RTMB, shall:

1. Ensure the application and implementation of international labor standards in the regions;
2. Verify and/or document allegations of threats, intimidation and harassment of trade unionists in the regions;
3. Conduct continuing monitoring and processing of reports of alleged violations;
4. Gather relevant information from regional authorities and/or courts and social partners;
5. Process complaints by gathering information, providing recommended actions, and monitoring progress in coordination with relevant agencies and social partners; and
6. Serve as the regional mechanism supporting the NTIPC, in its role as the High-Level Tripartite Monitoring Body on the application of international labor standards, including through coordination with and provision of case profiles and documentation, reports, and other relevant information arising from regional monitoring activities to the NTIPC Committee on Freedom of Association and Case Monitoring.

Section 3. Industry Tripartite Council (ITC)

- a. **Creation.** The Secretary of Labor and Employment, as Chairperson of the NTIPC, upon consultation with the concerned industry and the NTIPC, may constitute an industry-wide tripartite council at the national level. At the regional level, the RTIPC may create ITCs through a Resolution.

In creating an ITC, whether at the national or regional level, the following criteria shall be considered:

1. Key Employment Generators (KEGs) of the region;
2. Industries with critical contributions to the economy (e.g., tourism, education, hotel, construction, etc.); or
3. Export-oriented industries (e.g., fishing, agriculture, garments, etc.).

An ITC may cover a single industry or, where appropriate, a cluster of allied or closely related industries. ITCs within the same industry operating across more than three (3) provinces, if practicable, may be consolidated into a single regional ITC.

- b. **Composition.** – A National ITC shall be chaired by the Secretary of Labor and Employment or a duly authorized representative as *ex officio* Chairperson. It shall be composed of workers and employers' representatives from the most representative organization in the industry, provided that each sector shall have an equal number of representatives not exceeding ten (10) members. Such representatives may be members of the NTIPC at the same time, but in every case must come from the most representative workers and employers' organizations in the industry. The Chairperson shall, in all cases, ensure that the government agency or agencies directly concerned with the industry shall be represented in the National ITC.

The Regional ITCs, including provincial/city/municipal ITCs, shall be chaired by the Regional Director or a duly authorized representative as *ex officio* Chairperson. It shall be composed of members from the most representative labor and employers' organization in the industry within the region, not exceeding ten (10) members each from the workers' and employers' sectors. The Regional ITCs shall likewise include representatives of concerned government agencies.

- c. **Designation of ITC Representatives.** – At the national level, each representative shall be designated as a member of the ITC by the Secretary of Labor and Employment at regular intervals for a term of three (3) years, unless earlier replaced or recalled by the nominating organization.

At the regional level, each representative shall be designated as member of the ITC by the Regional Director, at regular intervals for a term of three (3) years, unless earlier replaced or recalled by the nominating organization.

- d. **Functions.** – The ITC shall perform the following:

1. Review the effects of national labor, economic, and social policies and international developments as these affects the conditions of the industry concerned;
2. Advise the Secretary of Labor and Employment in the implementation of policies and legislations affecting labor and employment in the industry concerned;
3. Formulate industry tripartite views, recommendations, and proposals on labor, economic, and social concerns;

4. Assist the concerned agencies in the identification of the industries or establishments with potentials for growth, as well as industries and establishments which are likely to experience labor disputes or in need of appropriate responses with respect to industry-specific concerns;
 5. Support DOLE agencies in the resolution of industrial disputes;
 6. Participate in national, regional or industry-specific tripartite conferences which the President or the Secretary of Labor and Employment may call from time to time;
 7. Adopt its industry-specific Action Plan and operational procedures; and
 8. Perform such other functions as may be required by the Secretary of Labor and Employment or by law.
- e. **Dissolution.** - The NTIPC and concerned RTIPC may *motu proprio* initiate dissolution proceedings of a national and regional ITC, respectively, upon determination that:
1. it has remained inactive for more than two (2) years;
 2. industry representation is no longer viable;
 3. the ITC is to be merged or consolidated into another tripartite structure; or
 4. it has completed its mandate, or the industry has become dormant and no longer has active industry-specific concerns.

The dissolution of the ITC shall be formalized through the adoption of a Resolution by the NTIPC or the concerned RTIPC.

RULE V – FUNCTIONAL RELATIONSHIPS AND LINKAGES

Section 1. Relationship Between NTIPC, TIPC's and ITC's – All TIPC's and ITC's shall function and operate as subcommittees within the NTIPC framework. These councils shall provide a platform for stakeholders to engage in dialogue, consultations, provide recommendations, address sectoral and regional labor issues, and contribute to policy formulation.

The subcommittees of the NTIPC, including the ITC's and TIPC's, shall have the autonomy to adopt their own resolutions within the scope of their respective mandates without prior approval from the NTIPC. Notwithstanding such autonomy, the NTIPC shall oversee and monitor the operations and outputs of the ITC's and TIPC's to ensure consistency with national tripartite priorities and these rules.

Whenever necessary, matters discussed by the TIPC's and ITC's that may initiate policy formulation, review or amendment shall be endorsed to the NTIPC for consideration, deliberation, and action.

Section 2. Relationship of NTIPC, TIPC's and ITC's with Coordinating Councils. – The NTIPC and its subcommittees, as deemed necessary, shall engage with coordinating councils, as defined herein, to fulfill their respective mandates and functions, ensuring policy and program alignment requiring multi-sectoral support.

Section 3. Technical and Administrative Support. – The NTIPC shall be assisted by a national secretariat to be provided by the DOLE-BLR. Administrative and technical support to Regional TIPC's and ITC's shall be provided by the concerned Regional Office.

RULE VI – NOMINATION AND SELECTION PROCEDURES

Section 1. Nomination of Sectoral Representatives. All sectoral representatives to various policy-making, decision-making or advisory tripartite bodies shall come from the most representative organizations of workers and employers.

As set out in Rule I, Section 3 (e) of these Rules, the most representative organizations of workers and employers shall be determined by the following:

1. The organization must be duly registered with the DOLE-BLR, or the SEC, or other government regulatory body; and
2. The organization must have a substantial and verifiable membership base nationally or in the region where it seeks representation, as the case may be; and
3. The organization must have the ability to represent local or sectoral interests. For this purpose, the ability to represent shall mean established presence or active participation in the sector, locality or industry.

In the absence of the most representative labor and employer organization in the locality or industry, sectoral representatives shall be selected from the sitting sectoral representatives in labor management councils (LMCs) in establishments with the most number of employed workers.

When there are no LMCs, sectoral representatives shall be selected from establishments with the most number of employed workers. Provided further, that the labor and employer representatives shall be chosen in a meeting duly called by the DOLE for that purpose.

Section 2. Procedure for Nomination of Sectoral Representatives. – In all cases where sectoral representation is required, the DOLE shall issue a call for the nomination of sectoral representatives. All nominations shall be in writing, and the nominating worker and employer organizations shall ensure that their nominees come from the most representative organization as defined herein, and are able to demonstrate willingness, availability, and competence to fulfill their respective responsibilities as representative of the sector/industry.

Section 3. Sectoral and Gender Representation in Tripartite Bodies. All designations to tripartite bodies at the national, regional, and industry levels shall strongly encourage gender balance, with equal representation of women wherever practicable, and shall also ensure appropriate representation of the public sector, as far as practicable.

Section 4. Recall. – When there is a recommendation from the nominating organization to recall its representative, the Secretary of Labor and Employment shall endorse the same to the Office of the President or to the appropriate appointing authority, as applicable.

In cases of death, permanent incapacity, or inability to perform the functions of the position, the Secretary of Labor and Employment or the Regional Director, as applicable, may formally notify the nominating organization to nominate, within a prescribed period, a replacement to serve the unexpired term.

RULE VII – FUNDING

Section 1. Source. – All TIPC and ITC activities shall be funded from the regular budget of the DOLE.

Section 2. Honorarium. – For every consultation/meeting attended, a reasonable honorarium or per diem shall be provided to regular members of the NTIPC, RTIPCs, and National ITCs,

subject to regular review every three (3) years, and subject to applicable accounting and auditing rules and regulations.

RULE VIII – FINAL PROVISIONS

Section 1. Recognition of Tripartite Councils under these Rules. – Tripartite Industrial Peace Councils (TIPCs) shall be recognized under these Rules based on their constitution and operation in accordance with the requirements herein, ensuring that membership remains representative of the tripartite sectors. Accordingly, all TIPCs shall derive their mandate and comply with these Rules.

Nothing in this provision shall be construed to affect the legal personality or registration with the SEC of the most representative workers' and employers' organizations, which may continue to be duly registered with the SEC in accordance with applicable laws.

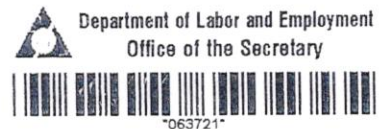
Section 2. Working Procedures. – The operational procedures governing the conduct, administration, and coordination of the national and regional TIPCs and ITCs, including secretariat functions and reporting mechanisms, shall be implemented in accordance with the Working Procedures prescribed under Annex "A", which shall form an integral part of these Rules.

Section 3. Repealing Clause. – All other rules and regulations inconsistent herewith are hereby repealed, amended or modified accordingly.

Section 4. Effectivity Clause. – These Rules shall take effect fifteen (15) days after its complete publication in a newspaper of national circulation.

SGD.

BENEDICTO ERNESTO R. BITONIO, JR.
Officer-in-Charge, Office of the Secretary



31 March 2026

WORKING PROCEDURES OF THE TRIPARTITE COUNCILS

Pursuant to Republic Act No. 10395 and its implementing rules and regulations and to ensure their effective and efficient operationalization of the National Tripartite Industrial Peace Councils (NTIPC) and its subcommittees, the following working procedures shall be observed:

I. CONDUCT OF BUSINESS

The NTIPC and its subcommittees shall adopt and observe the following procedures:

A. Authority to Call and Preside Over Tripartite Meetings

At the national level, the Secretary of Labor and Employment, as Chairperson, shall have the authority to call and preside over all meetings of the NTIPC. The Secretary may designate an Undersecretary to preside on his/her behalf. Regular meetings of the NTIPC shall, as far as practicable, be held quarterly.

At the regional level, the DOLE Regional Director shall have the authority to call and preside over all meetings of the Regional Tripartite Industrial Peace Councils (RTIPCs) and their subcommittees. The Regional Director may designate the Assistant Regional Director to preside over these meetings.

For provincial, city, or municipal TIPC/Industry Tripartite Councils (ITCs), the Regional Director may delegate the chairpersonship to the Director II of the Provincial or Field Office. In the absence of the Director, the chairpersonship may be delegated to a DOLE officer holding a salary grade not lower than salary grade twenty-five (SG 25).

For national ITCs, meetings shall be presided by the Undersecretary designated by the Secretary of Labor and Employment.

The respective Chairperson at each level may, upon their own initiative or upon the written request of the sector, call for special meetings, considering the urgency and importance of the proposed agenda.

B. Regularity and Frequency of Tripartite Meetings

The NTIPC and RTIPC shall meet regularly in plenary at least every quarter, without prejudice to such other special plenary meetings which any of the sectors may initiate or such other meetings as agreed upon.

National and regional ITCs, including provincial, city, or municipal TIPC, may agree on the regularity of meetings without prejudice to such other special plenary meetings which any of the sectors may initiate.

C. Notice of Meetings

A written notice of meeting, in the standard format attached as Annex A-1, containing the proposed agenda and accompanied by the pertinent discussion materials and the minutes of the previous meeting shall be sent to the members of tripartite council at least one (1) week before a scheduled meeting.

In special meetings initiated by either sector, the party requesting for the meeting shall be responsible for transmitting to the secretariat at least ten (10) days before the scheduled meeting all materials and documents relevant to the agenda of the special meeting.

D. Agenda

The setting of agenda may be initiated by the sectors or the DOLE. As far as practicable, the agenda for each meeting shall be discussed in the following order:

STANDING ITEMS

- a. Acknowledgement of Attendees
- b. Declaration of Quorum
- c. Call to Order
- d. Approval of the Agenda
- e. Approval of the minutes of the previous meeting
- f. Business matters arising from previous meetings

VARIABLE ITEMS

- g. Specific items for presentation and/or discussion
- h. Other matters

Discussions during the meeting shall proceed item by item based on the agenda. The council may agree to include standing items in the agenda, such as matters related to Freedom of Association (FOA) and the Labor and Employment Plan (LEP), among others.

Issues which may be raised during the meeting and are not otherwise included in the agenda may be discussed as other matters during the same meeting, if the representatives so agree, or shall be calendared for consideration in the next meeting.

E. Quorum

The presence of at least one (1) government representative with the authority to preside over the meeting, along with a majority of regular representatives from each sector, or a number of attendees as otherwise agreed upon by the council, shall be required to constitute a quorum for conducting business in all tripartite council meetings, provided that all members have been duly notified in writing.

In the absence of a quorum, the meeting may proceed for purposes of discussion and exchange of views, but no resolutions, agreements, or decisions of the Council shall be adopted.

F. Participation of Observers and Resource Persons

Requests from organizations or institutions to attend TIPC or ITC meetings as observers shall be submitted in advance and shall be acted upon by the concerned council. In resolving such requests, the council shall determine whether the purpose of attendance is relevant to the agenda or matters under deliberation, taking into account the need to preserve balanced representation and the integrity of tripartite discussions. Participation of observers, once allowed, shall be limited to providing technical inputs or clarifications, as may be deemed necessary by the Chairperson.

The concerned council may likewise invite resource persons whose expertise or institutional mandate is relevant to specific agenda items, for the purpose of providing technical inputs, presentations, or clarifications. Resource persons shall participate only for the duration of the relevant agenda item, unless otherwise authorized by the Chairperson.

For purposes of promoting linkages and ensuring coherence between regional and national tripartite discussions, members of the Tripartite Executive Committee (TEC) of the NTIPC may attend meetings of the RTIPCs in an observer or advisory capacity.

G. Resolution of Issues

Issues and recommendations concerning the implementation of policies and legislation affecting labor and employment shall be resolved or adopted by consensus of all sectors, provided there is a quorum. For this purpose, consensus shall mean the concurrence of the labor, employer, and government sectors, as collectively expressed by the representatives of each sector present during the meeting. Consensus arrived at by sectoral representatives' present shall bind those who are absent but were properly notified of the date, venue, and agenda of the meeting.

Written resolutions must be signed by all members present. Members who were absent but were otherwise notified shall be bound by the adopted resolution. For the purpose of signing resolutions, no proxies shall be allowed.

Secretariat or the administrative support of the tripartite councils shall furnish the NTIPC and concerned offices and agencies with adopted tripartite resolutions relevant to their mandates and programs to keep them informed of pertinent tripartite agreements and discussions so as to be apprised of all tripartite agreements/discussions.

In cases where the TEC of the NTIPC determines that resolutions adopted by an RTIPC or ITC warrant deliberation at the national level, the same shall be calendared for discussion in the NTIPC. For this purpose, representatives of

the concerned RTIPC or ITC shall be invited as resource persons in the NTIPC meeting where the resolution is to be taken up, to provide context and technical inputs in aid of tripartite deliberation.

H. Secretariat and Administrative Support

To ensure the effective and efficient operationalization of the NTIPC and its subcommittees, the following Secretariat and Administrative Support arrangements shall apply:

A. National level

1. National Tripartite Industrial Peace Council (NTIPC).

The Bureau of Labor Relations (BLR) shall serve as the National Secretariat of the NTIPC, and facilitate and coordinate the work of the NTIPC.

2. National Industry Tripartite Councils (National ITCs)

Administrative and technical support for National ITCs shall be provided by the BLR or the concerned bureau or attached agency designated by the Chairperson of the ITC.

B. Regional Level

1. Regional Tripartite Industrial Peace Councils (RTIPCs)

The Technical Support and Services Division (TSSD) of the DOLE Regional Office shall provide technical and administrative support to the RTIPC, under the supervision of the Regional Director.

In regions where Provincial, City, or Municipal TIPC are established, the designated Tripartism and Social Dialogue focal at the concerned Provincial or Field Office shall provide the necessary technical and administrative support, under the supervision of the head of said office, as may be applicable.

2. Regional Tripartite Monitoring Body (RTMB)

The TSSD shall provide technical and administrative support to the RTMB under the supervision of the Regional Mediator-Arbiter as the RTMB focal.

3. Regional ITCs

The TSSD or the concerned field/provincial office shall provide technical and administrative support to Regional ITCs, under the supervision of the Provincial/Field Office Head or the Mediator-Arbiter.

C. Coordination and Supervision

The BLR, as the National Secretariat of the NTIPC, shall monitor the operations of all TIPC and ITCs and provide technical assistance, guidance, and capacity-building support to the Regional Offices, Provincial/Field Offices, and designated Tripartism and Social Dialogue Focal to ensure the effective and consistent operationalization of the TIPC and ITCs in accordance with this Department Order and these Working Procedures.

D. Functions of the Secretariat and Administrative Support

The secretariat and administrative support shall provide the following:

1. Assist the Chairperson in identifying the agenda of the council based on emerging issues, sectoral concerns, and policy priorities.
2. Provide research-based analysis and coordinate with technical experts and identified resource persons for technical inputs for such inputs as may be relevant to items in the agenda.
3. Prepare the notice of meeting and make necessary administrative arrangements for sectoral meetings, workshops, and tripartite conferences:
 - a. Ensure timely preparation and dissemination of meeting notices to all members and other stakeholders as deemed necessary.
 - b. Arrange logistical and administrative needs, such as lease of venue, technical setup, and collation and distribution of materials for the meetings.
 - c. Confirm attendance and manage participant registration processes.
4. Draft technical documents such as resolutions, position papers, reports and similar documents for consideration and approval of the council. In preparing technical documents, the Secretariat shall ensure that the content is substantial, evidence-based, and thoroughly researched.
5. Monitor the attendance of sectoral representatives at tripartite council meetings. Attendance records shall be reported quarterly to the nominating organization or sector to ensure accountability and transparency.
6. Document all proceedings and prepare appropriate reports:

- a. Take detailed notes during meetings and record key points, decisions, and action items.
 - b. Prepare and distribute to members and stakeholders the minutes of the meeting and reports as required.
 - c. Keep comprehensive records of meetings, including written minutes and audio recordings to ensure accurate documentation and future reference.
7. Provide appropriate administrative support to all tripartite activities:
- a. Prepare all necessary documentation, resources, and logistical arrangements for tripartite activities.
 - b. Ensure smooth implementation of all processes involved in workshops, conferences, and meetings.
 - c. Support the facilitation of tripartite activities, ensuring participation and engagement of all members.
8. Perform such other functions as assigned by their respective Chairpersons.

II. OPERATIONAL PROCEDURES

A. Creation of Tripartite Council

The NTIPC as it deems necessary may create executive committees and subcommittees in accordance with the following procedures:

- a. The proposal to create an executive committee or subcommittee must be initiated either by a specific sector or prompted by relevant circumstances that highlight the need for such a committee.
- b. The NTIPC shall assess and deliberate on whether the creation of the committee is appropriate, beneficial, and necessary.
- c. To ensure a comprehensive evaluation, exploratory discussions may be conducted with relevant stakeholders to gather support in the creation of the committee.
- d. If deemed appropriate, the NTIPC may adopt a formal Resolution to create the executive committee or subcommittee. The Resolution should specify the committee's name, composition, purpose, and functions.

The RTIPC may also create its subcommittees as it deems necessary in accordance with the same procedure.

B. Nomination, Selection, and Appointment of Sectoral Nominees to Tripartite Councils/Bodies

1. All nominations of sectoral representatives shall be in accordance with Section 1, Rule VI of this Department Order, particularly in the determination of the most representative organizations.
2. For the purpose of nomination, the following procedures shall be observed:
 - a. The DOLE shall issue a call for nomination to the labor and employer organizations inviting them to nominate their representatives from their respective sectors in the tripartite council.
 - b. The DOLE shall receive nominations together with the following supporting documents such as but not limited to:
 - i. Written endorsement from the labor or employer organization of the sector they intend to represent;
 - ii. Personal Data Sheet or Curriculum Vitae
 - iii. Short Profile of the Nominating Organization
 - iv. Government issued clearances for sectoral positions endorsed to the Office of the President:
 - (1) National Bureau of Investigation Clearance
 - (2) Civil Service Commission Clearance
 - (3) Sandiganbayan Clearance
 - (4) Ombudsman Clearance
 - c. In the absence of a most representative organization within the locality or industry, the following shall be observed:
 - i. The DOLE shall call for nomination from the sitting sectoral representatives in Labor Management Councils (LMCs) within the establishments with the most number of employed workers.
 - ii. In the absence of such LMC, the DOLE shall call for nominations from the establishments with the highest number of employees. In such case, the labor and employer representatives shall be selected through a meeting duly called by the DOLE for this purpose.
 - d. The DOLE shall evaluate and process the submitted nominations based on the criteria provided in Rule VI Section 1 and endorse to the appropriate appointing or designating authority:
 - i. For provincial/city/municipal TIPCs and Regional ITCs – to the Regional Director for appointment or designation;
 - ii. For RTIPCs and national ITCs – to the BLR for appointment by the Secretary of Labor and Employment.

C. Recall of Sectoral Representatives

1. Members of the TIPC's and ITC's at the national and regional level shall have a term limit of three (3) years unless replaced or recalled by the nominating organization.
2. The nominating organization may recall its representative and recommend replacement in accordance with Sections 2 and 4 of Rule VI of this Department Order.
3. The nominating organization may take attendance records of the secretariat or the TSSD into account when evaluating whether to recall their representatives from the tripartite council. Any decision for recall must be formally communicated to the secretariat in writing.
4. Once a representation is recalled, the seat shall be declared vacant and open for new nominations subject to Sections 2 of Rule VI.